

contained in the same record, *quod non trahitur in exemplum*. *Vide* the conclusion of the oath of a Judge. *Vide* the Chronicle of Stow, 18 Edw. 3. 312.

Note; Thomas Weyland, Chief Justice of the Common Bench, Sir Ralph Hengham, Justice of the King's Bench; and the other justices, were accused of bribery and corruption; and their causes were determined in Parliament, where some were banished, and some were fined and imprisoned.

Vide 2 Ed. 3. fol. 27. That the Justices of Trayl-baston (so called for their summary proceeding) were in a manner justices in eyre; and their authority was founded upon the Stat. of Ragman, which you may see in the old Magna Charta. *Vide* the form of the commission of the [26] Trayl-baston, Hollingshead, Chron. fol. 312. And note; it appears by the said precedent and chronicle, that the King did examine the corruption of his Judges before himself in the Parliament, and not by force of any commission.

Absurdum est affirmare, (re judicata) credendum esse non judici.

[26] OF OATHS BEFORE AN ECCLESIASTICAL JUDGE EX OFFICIO.

The Ordinary cannot constrain any man, ecclesiastical or temporal, to swear generally to answer such interrogatories as shall be administered to him.

No man, ecclesiastical or temporal, shall be examined upon secret thoughts, or secret opinions.

The Ecclesiastical Judge ought not to examine *partem ream* upon their oath.

Note.—The kingly dignity is an inherent inseparable to the Royal blood of the King; and cannot be transferred to another, no more than a duke, or earl, or baron, may transfer over their dignities, for these are incidents inseparable.

The law and customs of England are the inheritance of the subject, which he cannot be deprived of without his assent in Parliament.

Note; Pasch. 4 Jacobi, in the time of the Parliament, the Lords of the Council of Whitehall demanded of Popham, Chief Justice and myself, upon motion made by the Commons in Parliament, in what cases the Ordinary may examine any person *ex officio* upon oath; and, upon good consideration and view of our books, we answered to the Lords of the Council at another day in the Council-Chamber.

"1. That the Ordinary cannot constrain any man, ecclesiastical or temporal, to swear generally to answer to such interrogatories as shall be administered unto him; but ought to deliver to him the articles upon which he is to be examined, to the intent that he may know whether he ought by the law to answer to them: and so is the course of the Star-Chamber and Chancery; the defendant hath the copy of the bill delivered unto him, or otherwise he need not to answer to it*.

"2. No man ecclesiastical or temporal shall be examined upon secret thoughts of his heart, or of his secret opinion: but something ought to be objected against him what he hath spoken or done. No lay-man may be examined *ex officio*, except in two causes, and that was grounded upon great reason; for lay-men for the most part are not lettered, wherefore they may easily be inveigled and entrapped, and principally in heresy and errors of faith: and this appears by an ordinance made in the time of Edward I. tit. Prohibition, in Rastal."

The words of which ordinance are, and *quod non permittant quod aliqui laici in bulliva sua in aliquibus locis conveniantur, ad aliquas recognitiones per juramenta sua faciendas, nisi in causis matrimonialibus et testamentariis*. And the reason that the Ecclesiastical Judge shall examine them in these two cases, is for this, that contracts of matrimony, and the estates of the dead, are many times secret; and they do not concern the shame and infamy of the party, as adultery, incontinency, usury, simony, hearing of mass, heresy, &c.

And for this cause in these cases, and such like, the Ecclesiastical Judge ought

* Note, this *ex officio* oath is since abrogated by stat. 16 Car. 1. c. 2. sect. 4. & 13 Car. 2. c. 12. sect. 4. See Gibson's Codex 56. 58. 407. 999. 1053.—*Note to former edition.*